

STATEMENT OF CASE

S78 Planning Appeal against the refusal of detailed Planning Permission for:

The proposed construction of a detached single storey 3-bedroom self-build dwelling with associated access, driveway, parking and detached car port at Land to the rear of 124 Cheltenham Road, Bishops Cleeve

Contents

1. Introduction	Page 3
2. Site Context and Appeal Proposal	Page 3
3. Planning History	Page 4
4. The Development Plan	Page 5
5. Material Considerations	Page 6
6. Refusal Reason 1	Page 7
7. Refusal Reason 2	Page 8
8. Refusal Reason 3	Page 8
9. Self Build and Custom Built Act	Page 9
10. Planning Balance and Conclusion	Page 10

Appendix 1 – Refusal Notice

Appendix 2 – Officer Report

Appendix 3 – Self Build Need Statement by Appellant

Document control

VERSION	DATE	REVISION	AUTHOR
1	11/02/2025		DS

Approved for release;

Boughton Butler Ltd.

www.boughtonbutler.co.uk



[@BoughtonButler](https://twitter.com/BoughtonButler)

1. Introduction

1.1 This statement is submitted in support of an appeal under Section 78 of the Town and Country Planning Act 1990 against the Council's decision to refuse planning permission for a single new dwelling on land to the rear of 124 Cheltenham Road, Bishops Cleeve.

1.2 The appeal proposal is a high-quality, low-impact, single-storey self-build dwelling located within the settlement development boundary in a sustainable location. The Council does not identify any unacceptable impacts in relation to highways safety, neighbour amenity (privacy/overbearingness), or other technical matters that would justify refusal of planning permission. The refusal instead rests primarily on a subjective design/character objection which, for the reasons set out below, is overstated, inconsistently applied, and fails to lawfully engage with the correct decision-making framework in the context of the Council's housing land supply position.

1.3 The Council refused permission for three reasons: (i) alleged harm to character/spatial pattern due to siting and contemporary flat-roof design; (ii) alleged failure to meet the Nationally Described Space Standard in relation to Bedroom 3; and (iii) absence of agreed/finalised mitigation in respect of the Cotswold Beechwoods SAC Zone of Influence.

1.4 This statement addresses each refusal reason in turn and then sets out the overall planning balance, including the correct application of the NPPF paragraph 11(d) "tilted balance". It also addresses a highly material consideration that has not been properly grappled with by the Council, namely the approval of a materially similar contemporary single-storey dwelling at the rear of 118 Cheltenham Road on an adjacent backland site.

2. Site context and the appeal proposal

2.1 The appeal site comprises the end of the rear garden of 124 Cheltenham Road and an additional parcel of land running behind the rear gardens of neighbouring properties. It sits within the defined development boundary for Bishops Cleeve and is not subject to any designation that would prevent residential development in principle. The site is a contained backland parcel with existing boundary treatment and landscaping, with limited visibility from the public realm.

2.2 The proposal is for a detached single-storey dwelling with a flat roof and a reduced overall height and footprint compared to earlier iterations. The building is deliberately low profile. The associated access, driveway and parking arrangements are contained within the backland plot and are designed to operate without harm to highway safety or the operation of the surrounding road network.

2.3 The design has been purposefully shaped by site constraints and planning fundamentals. The single-storey form is inherently less likely to give rise to overlooking, loss of privacy, or overbearing impacts. The contemporary flat-roof approach is not an arbitrary stylistic decision; it is integral to achieving a discreet built form that "nests" within the backland environment, enabling controlled

fenestration and rooflighting to provide good internal living conditions while minimising external impacts on neighbouring occupiers.

2.4 The proposal therefore represents an appropriately restrained, site-responsive form of development which should be assessed on its actual effects, not on whether it imitates the frontage typology of Cheltenham Road.

3. Planning history

3.1 The Council places emphasis on earlier refused applications at the site. Prior decisions are capable of being material considerations, but they do not create a presumption against development and cannot substitute for a lawful assessment of the proposal now before the Inspector. Each application must be determined on its own merits in accordance with the development plan unless material considerations indicate otherwise.

3.2 The current proposal is materially different in both form and effect. The appeal scheme has been re-conceived as a low-profile single-storey dwelling with a significantly reduced height compared to earlier schemes. This is not a minor adjustment; it goes directly to the typical planning sensitivities associated with backland development. Height and massing are key drivers of perceived overdevelopment, dominance and neighbour impact, and the revised form has been intentionally designed to minimise these concerns.

3.3 The Council's position that the current scheme has "failed to overcome" earlier refusal reasoning is not borne out by a proper effects-based appraisal. The revised layout and design are precisely the sort of site-specific responses expected where a proposal must respect neighbouring amenity and the enclosed nature of a backland plot. Where a scheme is lowered, simplified in massing, and designed to reduce potential overlooking and overbearingness, it is not rational to dismiss that evolution as inconsequential.

3.4 The Council appears to have treated the existence of past refusals as a proxy for an inherent objection to backland development, rather than undertaking a fresh analysis of whether this specific revised scheme results in definable planning harm. If the objection is truly one of "crampedness" or "contrived" layout, the Council must identify the resulting harm in planning terms: for example, unacceptable neighbour impacts, functional failure, substandard access, or harmful townscape effects. The Council does not do so. In particular, the Council does not identify highway safety harm, does not identify neighbour amenity harm as a reason for refusal, and does not identify visibility-based townscape harm from the public realm.

3.5 The Council's narrative is also undermined by its own acceptance that the site is within the development boundary and that a residential use in principle is acceptable as infill in a built-up area. It is not coherent to accept the principle of development and the technical acceptability of the access and amenity impacts, but then refuse the scheme on broad and largely rhetorical character assertions without tying them to a tangible planning harm.

3.6 It is also necessary to rebut any implication that the proposal must "match" the surrounding frontage architecture because past schemes were refused. Frontage character is described as

predominantly two-storey pitched-roof dwellings with traditional materials. That is not, however, a policy requirement for mimicry on a backland plot. A backland plot is read differently, functions differently, and is governed by different constraints. Importantly, insisting on a two-storey “matching” form would likely worsen impacts by increasing overlooking risk and perceived enclosure. It would also be a pastiche response, prioritising appearance-by-imitation over design quality and site optimisation, which is contrary to the NPPF’s emphasis on securing well-designed places.

3.7 The appeal proposal should therefore be assessed as a materially revised, site-led scheme which is not comparable to earlier refused iterations either in scale, design intent, or planning effects.

4. The Development Plan, Housing Land Supply & NPPF

4.1 The statutory starting point is section 38(6) of the Planning and Compulsory Purchase Act 2004: decisions must be made in accordance with the development plan unless material considerations indicate otherwise. Section 70(2) of the Town and Country Planning Act 1990 requires the decision-maker to have regard to the provisions of the development plan and to any other material considerations.

4.2 The development plan contains policies concerning the principle of development within settlement boundaries, the delivery of housing, and the achievement of good design that responds to local character and context. Properly understood, these policies require contextual response and design quality. They do not require replication of surrounding architecture, and they do not require a pastiche outcome, particularly where site constraints indicate that an alternative design approach is the only way to secure an acceptable development.

4.3 A critical material consideration is the Council’s housing land supply position. The Council’s own evidence confirms that it is unable to demonstrate a five-year housing land supply and that the shortfall is significant. As a result, the “tilted balance” in paragraph 11(d) of the National Planning Policy Framework is engaged. In these circumstances, planning permission should be granted unless either the application of specific policies in the Framework provides a clear reason for refusal, or the adverse impacts of granting permission would significantly and demonstrably outweigh the benefits when assessed against the Framework as a whole.

4.4 The legal and policy consequence of paragraph 11(d) is not that all harms vanish; it is that the decision-maker must properly recognise the enhanced weight attached to deliverable housing in sustainable locations and must refuse only where harms are sufficiently serious to meet the high paragraph 11(d) test. The Council’s approach of substantially discounting the benefit of one dwelling risks misapplying the tilted balance. Small schemes are not exempt from paragraph 11(d). Indeed, where a scheme is modest in scale, its impacts are usually correspondingly modest, and the balancing exercise must recognise both sides fairly.

4.5 This is particularly relevant here because the Council has accepted the principle of development within the development boundary, and because there are no identified unacceptable technical impacts. In that evidential context, a refusal founded on broad subjective language about “discordance” and “crampedness” must be supported by a clear explanation of the actual planning

harm and why that harm is so serious that it outweighs the benefits in the paragraph 11(d) sense. That has not been done.

4.6 The correct approach, therefore, is to: (i) confirm that the principle of development is acceptable; (ii) identify the actual harms (if any) arising from the proposal; (iii) attribute appropriate weight to benefits, including housing delivery in a shortfall authority area and the additional self-build benefit; and (iv) only refuse if harms significantly and demonstrably outweigh those benefits. When that framework is applied, the appeal scheme should be approved.

5. Material Considerations

5.1 A highly material consideration is the Council's decision to approve a contemporary single-storey dwelling on land to the rear of 118 Cheltenham Road (adjacent and within the same backland context). That permission demonstrates, on a closely comparable site, that the Council has accepted the principle and acceptability of a discreet backland dwelling of contemporary character.

5.2 The Council has sought to downplay the relevance of the 118 approval by pointing to differences such as bedroom number and site size. That is not an adequate basis to disregard the decision as a material consideration. Planning consistency is not a test of identity; it is a test of whether the comparator shares materially relevant characteristics and raises the same planning issues.

5.3 The materially relevant planning issues here are exactly those that arise at 118: backland siting, limited public visibility, the need for low-impact massing, and the necessity of a site-led design approach to protect neighbour amenity. On those issues, the approval at 118 provides strong support for the proposition that such development is capable of being acceptable in this immediate locality and that a contemporary approach is not inherently harmful to character.

5.4 The principle of consistency in decision-making has been emphasised by the Courts (including in *North Wiltshire DC v Secretary of State for the Environment*), recognising that while each case must be judged on its merits, fairness and public confidence require comparable cases to be treated comparably unless there is a cogent reason to depart. Here, no cogent reason has been identified to justify refusing the appeal scheme while approving a materially similar neighbouring backland development. That inconsistency is particularly striking given the Council's reliance on broad character/spatial pattern assertions which, if genuinely determinative, would logically have applied to the 118 development as well.

5.5 The Inspector is therefore invited to give substantial weight to the 118 approval as a material consideration supporting the appeal.

6. Refusal reason 1: design, character, spatial pattern and alleged “crampedness”

6.1 The Council alleges that the proposal fails to respect the character of the area and the spatial pattern of development due to “incongruous siting” and its flat roof, and that it results in a “contrived and cramped layout” harmful to character and appearance.

6.2 The Council’s design reasoning is flawed because it collapses “contextual response” into “architectural matching”. The NPPF’s design agenda is about securing well-designed places, not enforcing replication. High quality design is judged by appropriateness, functionality, coherence, sustainability, and how well it responds to constraints and opportunities. The appeal scheme is specifically designed to respond to the constraints and opportunities of a backland site: discreet height, controlled openings, and a form that avoids the typical amenity and massing impacts of taller development.

6.3 The Council’s implicit preference for a pitched-roof two-storey “brick” approach would, on this site, drive a pastiche outcome that is less suitable in planning terms. It would increase height and massing, heighten overlooking potential, and increase perceived enclosure. In contrast, the contemporary single-storey approach is inherently lower impact, more consistent with minimising neighbour effects, and more capable of being integrated sensitively into a secluded garden setting. Good design is not achieved by forcing a building to imitate the street frontage when the development is not a frontage plot and is not experienced in the public realm in the same way.

6.4 The Council’s character argument is also weakened by the site’s limited public visibility. Character and appearance impacts must be judged by how development is experienced. A backland dwelling screened behind existing frontage properties does not form part of the primary street scene. It will be experienced principally from within the private backland environment and from limited viewpoints, and therefore the threshold for claiming significant character harm is higher. If the alleged harm is so serious as to justify refusal under paragraph 11(d), it must be clearly evidenced and explained. It has not been.

6.5 The allegation of “crampedness” is not substantiated. The Council does not identify functional failure in terms of access, servicing, refuse, parking, turning, emergency access, or site usability. Nor does the Council identify unacceptable living conditions for future occupiers (the internal space refusal reason is addressed separately and is incorrect). Nor does it identify neighbour amenity harm as a refusal reason. In the absence of such evidence, “crampedness” becomes a label rather than a reasoned planning harm.

6.6 The proper question is whether the dwelling sits comfortably within the plot and whether it results in unacceptable harm to the character of the area. For the reasons above, the design is a coherent response to a backland site and is reinforced by the fact that a materially similar contemporary single-storey backland dwelling has been found acceptable immediately adjacent at 118 Cheltenham Road.

6.7 Even if the Inspector were to conclude that the contemporary form represents a degree of contrast with the dominant frontage typology, that is not, of itself, “harm”. Planning policy does not prohibit architectural variety, particularly where variety is the product of site-led constraints and

where the development is not prominent in the public realm. Any such contrast would, at most, attract limited weight as a minor consideration and would plainly fall short of the paragraph 11(d) threshold.

7. Refusal reason 2: alleged NDSS failure for Bedroom 3

7.1 The Council's second reason for refusal alleges that Bedroom 3 fails the Nationally Described Space Standard in terms of minimum width and floor area, resulting in poor living conditions.

7.2 That reason is factually incorrect. The submitted plans demonstrate that Bedroom 3 exceeds the minimum width of 2.15m and has an area of approximately 9.1 square metres, which is above the minimum floor area requirement for a single bedroom. On that basis, the refusal reason is unsound and must fall away.

7.3 Importantly, the Council's concern is framed solely as dimensional non-compliance rather than a wider qualitative failure. There is no allegation of inadequate daylight, unusable layout, inadequate circulation, or inability to furnish. Where the objective standard is met, there is no evidential basis for refusal on this ground.

7.4 The Inspector is invited to conclude that the scheme meets the NDSS and provides good internal living conditions.

8. Refusal reason 3: SAC Zone of Influence mitigation

8.1 The Council's third refusal reason relates to the Cotswold Beechwoods SAC Zone of Influence and the absence of an agreed/finalised mitigation mechanism. This is presented as conflict with the relevant policy requiring mitigation of recreational pressure on the SAC.

8.2 The appellant's position is that this is a readily resolvable matter which does not amount to a substantive planning harm. The appeal proposal is capable of being made acceptable through the standard mitigation route, including a unilateral undertaking or other appropriate legal mechanism securing the required contribution or mitigation in accordance with the Council's strategy.

8.3 The Council does not suggest that mitigation is impossible, that the scheme cannot be mitigated, or that residual impacts would remain after mitigation. The refusal is therefore procedural in nature and can be cured during the appeal process.

8.4 The Inspector is invited to treat this issue as capable of resolution by undertaking and not as a reason to withhold permission on the planning merits.

9. Self-build and Custom Housebuilding: statutory duty, local need and design benefits

9.1 The appeal proposal is a genuine self-build dwelling. The appellant has prepared a supplementary statement (appendix 3) that explores their need for the development, confirms the self-build intention, and explains why this plot and this form of development are necessary and appropriate for their circumstances. That supplementary statement should be read alongside this appeal statement as a material consideration supporting the proposal.

9.2 Self-build and custom housebuilding has a specific statutory and policy context which adds weight to this appeal. Under the Self-build and Custom Housebuilding Act 2015 (as amended), local authorities must keep a register of individuals and groups seeking to acquire serviced plots and must have regard to that register when carrying out relevant planning, housing, land disposal and regeneration functions. The legislative intent is to ensure that self-build/custom build forms a real and supported component of housing delivery.

9.3 The statutory framework also introduced a duty to grant sufficient development permissions to meet the level of demand recorded on the register over the relevant base period. In practice, this means local authorities should not treat self-build as incidental; they are expected to facilitate permissions that enable self-build plots to come forward. In a context where the Council also faces a significant housing land supply shortfall, the weight to attach to deliverable self-build proposals within settlement boundaries is strengthened further.

9.4 Self-build is also directly relevant to design. A consistent strength of self-build/custom build is the opportunity to deliver high-quality tailored homes that respond intelligently to site constraints, long-term use, sustainability and living conditions. This appeal scheme embodies those benefits. The design is bespoke and has been shaped to minimise impacts: it is single storey to reduce bulk and avoid overlooking; the fenestration strategy can be controlled to protect privacy; and the flat roof supports a low profile, discreet form capable of integrating sensitively within a garden/backland setting.

9.5 The Council's design criticism, which implicitly pushes toward a two-storey "matching" approach, would produce a more harmful outcome on this particular plot. It would be more likely to create overlooking and privacy impacts, would increase overbearingness, and would represent a pastiche response rather than a high-quality site-led solution. The NPPF's design agenda is not served by forcing imitation where site constraints point clearly to a different form as the best way to secure a well-designed place.

9.6 These self-build and design benefits are amplified by the site's limited public visibility. The dwelling is not a street-scene building; it is a backland development that will be largely screened from public viewpoints. The correct design question is therefore whether the proposal is high quality, coherent, and respectful of neighbours and its enclosed setting. On those matters, there is no identified refusal reason relating to neighbour impacts, and the low-profile self-build design is precisely the appropriate response.

9.7 For these reasons, the Inspector is invited to attribute positive weight to the self-build nature of the proposal as part of the overall planning balance, recognising both the statutory context and the enhanced design opportunity self-build provides, particularly in a housing shortfall authority area.

10. Overall planning balance and conclusion

10.1 The proposal is within the settlement development boundary and is acceptable in principle as infill development within the built-up area. The Council's decision does not rest on a principled objection to residential development in this location.

10.2 The Council's housing land supply position engages paragraph 11(d) of the NPPF. The consequence is that permission should be granted unless protected policies provide a clear reason for refusal or the adverse impacts would significantly and demonstrably outweigh the benefits.

10.3 The alleged harms do not meet that high bar. The design objection relies on an overly rigid concept of "matching" frontage typologies and fails to properly account for the site's backland characteristics, limited public visibility, and the necessity of a low-profile, site-led design response to protect neighbour amenity. The Council's approach also fails to properly grapple with the materially similar approval at 118 Cheltenham Road, which supports the acceptability of contemporary single-storey backland development in this immediate context.

10.4 The second refusal reason is factually incorrect. Bedroom 3 meets the relevant NDSS requirements and therefore this reason must fall away entirely.

10.5 The third refusal reason is not a substantive planning harm but a mitigation mechanism issue capable of being addressed by unilateral undertaking or equivalent legal arrangement. It should not prevent the grant of planning permission where the development is otherwise acceptable.

10.6 When the paragraph 11(d) framework is applied correctly, and when appropriate weight is given to (i) housing delivery in a shortfall authority area; (ii) the self-build statutory context and the appellant's specific self-build need (as set out in the supplementary statement); (iii) the absence of technical harms; and (iv) the strong material comparator at 118 Cheltenham Road, it is clear that any limited and largely subjective design concerns cannot rationally be said to significantly and demonstrably outweigh the benefits of the scheme.

10.7 The Inspector is therefore respectfully invited to allow the appeal and grant planning permission, subject to appropriate conditions and completion of the required SAC mitigation and any necessary self-build securing mechanism, as applicable.